

information needed for proper accounting and as a result, the pleading may be alleged with less particularity.

Accordingly, the motion to strike is denied.

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”) Plaintiff must allege: (1) “extreme and outrageous conduct by defendant with an intention of causing or reckless disregard of the probability of causing emotional distress”; (2) “severe or extreme emotional distress”; and (3) “actual and proximate causation of the emotional distress by the defendant’s outrageous conduct”. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) An outrageous conduct is one that was so extreme as to be beyond all bounds tolerated by society, which must be alleged with great specificity. (*Id.* at 1051; *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160-161.) Defendant argues that the Complaint fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

In opposition, Plaintiff cites *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, in which the court held that “[e]motional distress damages may be recoverable if directly caused by an attorney’s conduct in breach of his fiduciary duties.” (*Id.* at 767.) But not every claim for breach of fiduciary duty supports a claim for emotional distress. The *Kaushanky* court recognized the lines of cases which held that “ ‘[e]motional distress damages ordinarily are not recoverable in a legal malpractice action if the representation concerned primarily the client’s economic interests and the emotional injury derived from an economic loss.’ [Citation.]” (*Id.* at 768.) It held that, even in the case of breach of fiduciary duty, the client must sufficiently allege that the “ ‘intentional or affirmative misconduct by an attorney or noneconomic injury resulting from an attorney’s professional negligence.’ [Citation.]” (*Ibid.*) Here, the allegations show that Plaintiff’s alleged emotional distress ensued from purely economic losses of not receiving the expected settlement rather than Defendant’s alleged misconduct that caused the economic losses.

7.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	MOTION TO STRIKE

Tentative Ruling: See above.

8.

CASE #	CASE NAME	HEARING NAME
CVME2602721	VILLEDA VS INTERNATIONAL COFFEE & TEA, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT the motion to compel arbitration and stay civil proceedings pending arbitration.

This is an employment action involving violations of the Fair Employment and Housing Act (FEHA) and the Labor Code. Plaintiff, Valeria Villeda, alleges she worked at Defendant, International Coffee & Tea, LLC's location at 31938 Temecula Parkway in Temecula. Defendant, Yolanda Griffin, is alleged to be Defendant's District Manager. Her employment began in August of 2021. In April of 2024, Plaintiff informed Griffin that she was pregnant. Plaintiff went on medical leave on 10/31/24 due to illness and complications associated with her pregnancy. Her return-to-work date was extended twice until 8/11/25. Plaintiff was terminated on 7/15/25. Plaintiff filed her Complaint on 1/29/26 alleging fourteen causes of action: 1) – 4) & 6) FEHA claims; 5) retaliation under CFRA; 7) – 10) wage and hour violations; 11) Bus. & Prof. Code § 17200, *et. seq.*; 12) wrongful termination in violation of public policy; 13) declaratory relief; and 14) injunctive relief.

Defendant, International Coffee & Tea, LLC, brings this motion to compel arbitration pursuant to the Mutual Arbitration Agreement (MAA) and to stay civil proceedings. (Federal Arbitration Act [FAA] 9, USC § 4, *et. seq.* and the California Arbitration Act [CAA] CCP § 1280, *et. seq.*) Defendant argues that Plaintiff signed the subject MAA, which is valid and enforceable; is governed by the FAA; is also enforceable under California law; that all Plaintiff's claims relate to Plaintiff's employment falling within the scope of the MAA; that the MAA is not unconscionable; and the court may sever any unconscionable terms.

Plaintiff, Valeria Villeda, opposes the motion arguing that the MAA is unauthenticated and so, does not exist; and that she is exempt from arbitration under Labor Code § 229; that she is exempt from the FAA as a transportation worker; and that the MAA is replete with unconscionable terms.

The Reply asserts that there are more details establishing that Plaintiff signed the MAA; that all evidentiary standards have been met; that a supplemental declaration is appropriate to reply to Plaintiff's argument regarding authentication of her electronic signature; that Plaintiff is not a transportation worker – she was the General Manager (GM) of the specific Temecula location; that Labor Code § 229 is preempted by the FAA; and, that the MAA is not unconscionable.

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The California Supreme Court recently explained in *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 110, that relying on a policy favoring arbitration “as an interpretive presumption” was “misplaced.” “[T]he policy “favoring” arbitration is not one of promoting arbitration over litigation, but instead of ensuring that arbitration agreements are not disfavored, i.e., that they are treated like other contracts.” (*Id.* citing *Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 579.) Thus, there is no longer a presumption that the law favors arbitration over litigation in court.

There is no dispute that the FAA applies to the MAA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the AA expressly states that it is governed by the FAA. (Dec.Rodrigues ¶ 8, Ex. “A”, p. 1.)

The FAA exempts certain contracts from its scope, specifically the employment

contracts of ‘seamen, railroad employees, [and] any other class of workers engaged in foreign or interstate commerce.’” (*Rittmann, supra.*) The *Rittmann* Court noted that the issue presented was whether the transportation workers had to cross state lines to be “engaged in interstate commerce” for purposes of applying the exemption. (*Id.*) The Court determined that Amazon’s delivery providers fell within the exemption, and therefore, their employment contracts were not subject to the FAA. (*Id.* at 909.) In other words, transportation workers do not have to cross state lines to be considered to be engaged in the movement of goods in interstate commerce.” (*Id.* at 910, 915²; see also, *Ortiz v. Randstad Inhouse Servs., LLC* 95 F.4th 1152, 1160 (9th Cir. 2024).)

² Notably, this Court is not bound by the *Rittmann* case. While federal court decisions may be cited as persuasive authority, they are not controlling. (*People v. Gonzales and Soliz* (2011) 52 Cal.4th 254, 296; see *People v. Crittenden* (1994) 9 Cal.4th 83, 120 n.3 [decisions of lower federal courts are not binding]; see also, *Valencia v. SCIS Air Security*

Moreover, a worker does not need to be in the transportation industry to fall within the exemption. (*Bissonnette v. Lepage Bakeries Park St., LLC* (2024) 601 U.S. 246, 252.) Since the FAA is a clear policy in favor of arbitration, section 1 is given a narrow construction. (*Performance Team Freight Systems, Inc. v. Aleman* (2015) 241 Cal.App.4th 1233, 1240-1241.) The party opposing the motion has the burden in demonstrating the exemption applies. (*Ibid.* at 1241.)

In *Southwest Airlines Co. v. Saxon* (2022) 596 U.S. 450, 454, the plaintiff worked at Southwest Airlines as a ramp supervisor which required her to load and unload baggage, airmail, and commercial cargo on and off airplanes that travel across the country. Southwest transported more than 162 million passengers, and 256 million pounds of cargo. (*Id.*) The Supreme Court focused on the word “engaged” which means occupied, employed or involved in—therefore, any worker directly involved in transporting goods across state or international borders fell within the exemption. (*Id.* at 457.) The fact that airline employees who physically load and unload cargo on and off planes that travel in interstate commerce were part of the interstate transportation of goods. (*Id.*) Cargo workers were intimately involved in the transportation of commerce. (*Id.* at 458-459.)

“Truck drivers who cross interstate lines usually are considered transportation workers.” (*Performance Team*, *supra*, 241 Cal.App.4th at 1240; see also *Garrido v. Air Liquide Industrial U.S., LP* (2015) 241 Cal.App.4th 833, 838, 840-841; *Muro v. Cornerstone Staffing Solutions, Inc.*, (2018) 20 Cal.App.5th 784, 790-792.) This has been extended to employees who did not physically transport goods across state lines, but the employer was in the transportation industry and most of the goods transported originated outside of California. (*Muller v. Roy Miller Freight Lines, LLC* (2019) 34 Cal.App.5th 1056, 1068-1069.) It has also applied to drivers who made only intrastate deliveries but were part of “the last phase of a continuous journey of the interstate commerce” for out-of-state beverages. (*Nieto v. Fresno Beverage Co., Inc* (2019) 33 Cal.App.5th 274, 282-284; see also *Betancourt v. Transportation Brokerage Specialists, Inc.* (2021) 62 Cal.App.5th 552, 560-561 (last mile delivery drivers).)

The Ninth Circuit in *Ortiz v. Randstad Inhouse Services, LLC* (9th Cir. 2024) 95 F.4th 1152, 1157, involved a temporary worker at a warehouse that was part of the international supply chain for Adidas products—the warehouse received shipments from international locations and then shipped to consumers and retailers in a variety of states. The worker’s job duties included unloading, picking and transporting packages to racks to organize; transporting packages to the picking section of the warehouse; assisting pickers in obtaining packages for shipping; and assisting in preparing packages to leave the warehouse. (*Id.* at 1158.) The Ninth Circuit focused on the *Saxon* test: (1) considering the job description, including the specific nature of the employee’s work; and (2) the worker must play a direct and necessary role in the free flow of goods across the border, and actively engaged in the transportation of goods across borders. (*Id.* at 1159-1160.) The Court found that the employee’s job was actively involved in the transportation of goods even if his role was small. (*Id.* at 1162.)

Corp. (2015) 241 Cal.App.4th 377, 383 [describing U.S. Supreme Court and California Supreme Court precedent as binding authority and Ninth Circuit precedent as merely persuasive authority.]) *Rittman* is a Ninth Circuit case applying the FAA and Washington state law, and is not therefore, binding authority on this Court.

Here, Plaintiff claims she is exempt from the FAA because she was a transportation worker because she regularly handled merchandise that had been shipped to Defendant, which included unloading, receiving, and transportation. (Dec.Villeda ¶ 8.) She declares her work involved the continuous movement of goods from arrival at the store until their final destination. (*Ibid.*) Plaintiff incorrectly claims *Ortiz* is directly on point.

Defendant persuasively argues that Plaintiff must establish that she was personally involved in transporting goods from one location to another to further interstate commerce as was found in each and every case she cited. She cannot do so. Plaintiff was the GM at a single location in Temecula, not a delivery worker. It is nonsensical that, as a GM for a single location, she was *actively involved* in the transportation of goods when she “unloaded and received shipments, transported merchandise throughout the store” and stocked shelves. (Dec.Villeda ¶ 8.) Plaintiff does not declare that her primary job duties require her to transport merchandise to and from other store locations. To the contrary, she states this occurred only “when directed to do so.” (*Ibid.*) Plaintiff has not established she is exempt as a transportation worker. Thus, the FAA applies.

Plaintiff argues that Labor Code § 229 allows her to proceed on her pending claims with the Labor Commission despite the existence of the MAA due to the transportation worker exemption. As indicated above, the exemption does not apply here and the FAA does. “As applied to contracts involving interstate commerce, this statute [Labor Code § 229] conflicts with the FAA § 2 and is therefore preempted.” (Knight, *et. al.*, CPG: Alternative Dispute Resolution (TRG 2021) § 5:49 citing, *Perry v. Thomas* (1987) 482 U.S. 483, 490.) Since the FAA applies, Labor Code § 229 is preempted.

Defendant asserts that Plaintiff agreed to arbitrate her employment-related disputes. Plaintiff signed the MAA electronically through her Dayforce account. (Dec.Rodrigues ¶¶ 9-20, Exs. “A” – “C”.) To the contrary, Plaintiff asserts that she “does not recall being presented with, reviewing, or signing an arbitration agreement during her employment with Defendant.” (Dec.Villeda ¶ 6.) She argues that Defendants have failed to provide an evidentiary foundation establishing she agreed to the MAA.

Any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law.” (Evid. Code § 1400; *People v. Valdez, supra.*) Civil Code § 1633.9 addresses how a proponent of an electronic signature may authenticate the signature, i.e., show that the signature is, in fact, the signature of the person the proponent claims it is. The statute provides as follows:

- (a) An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.

- (b) The effect of an electronic record or electronic signature attributed to a person under subdivision (a) is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties' agreement, if any, and otherwise as provided by law.

(Civil Code § 1633.9; see also *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843).

Here, Defendant has submitted the declaration of Thais Rodrigues, Defendant's Head of People & Culture, Americas, who has access to Defendant's employees' personnel records regularly maintained by Defendant in the ordinary course of business. (Dec.Rodrigues ¶ 2.) She declares she has personal knowledge of such records, which she is authorized to certify, and that she has personal knowledge of Defendant's business operations. (*Ibid.*) Ms. Rodrigues certifies that the MAA is from Plaintiff's personnel file. (*Id.* ¶¶ 5, 18.) She declares and authenticates that on 8/30/21, Plaintiff entered the MAA. (*Id.* ¶ 8, Ex. "A".) Ms. Rodrigues explains the general process for team members to access their individual Dayforce accounts for which only he/she has access, to read and review documents including policies and agreements by clicking a box to confirm, and to sign such as the MAA. (*Id.* ¶¶ 10-15.) She asserts that only the person to whom the Dayforce account belongs may make the confirmation. (*Id.* ¶¶ 16, 19, Ex. "B".) She declares that Plaintiff executed the MAA under "Valeria Marquez", believed to be her maiden name, which was changed to Villeda in June of 2025. (*Id.* ¶ 17, Exs. "B"- "C".) Contrary to Plaintiff's argument challenging authentication, Ms. Rodrigues has established that only Plaintiff had access to her unique account.

Nonetheless, Ms. Rodrigues provided additional details of the onboarding process. (Supp.Dec.Rodrigues ¶¶ 3-8.) And Plaintiff argues that she was a GM, not a team member, however, Ms. Rodrigues declares that when she was hired, Plaintiff was brought in as a "Manager in Training". (*Id.* ¶ 9, Ex. "F".)

While Plaintiff asserts objections to Ms. Rodrigues' initial declaration, the objections are not well-taken. Ms. Rodrigues has established a foundation for her statements and asserts personal knowledge based on her review of the documents in Plaintiff's personnel file. Ms. Rodrigues' declarations are typical of declarations provided under similar circumstances. Moreover, Plaintiff has not asserted that she did not access her Dayforce account or electronically sign the MAA. Thus, Defendant has established the existence of the MAA.

Plaintiff argues that the MAA is both procedurally and substantively unconscionable.

It is true that a contract is unenforceable if it is unconscionable. (Civil Code §1670.5.) Under California law, "[i]f the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civil Code § 1670.5(a); see *Armendariz v.*

Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114.) It should be noted that the FAA limits state unconscionability rules that facially discriminate against arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1143.)

“[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 910.) Both elements must be present to some degree for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Armendariz, supra*, 24 Cal.4th at 114.) Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof. (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff argues that the AA is procedurally unconscionable. “‘Procedural unconscionability’ concerns the way the contract was negotiated and the parties’ circumstances at that time. It focuses on the factors of oppression or surprise. This element is generally satisfied if the agreement constitutes a contract of adhesion.” (*Id.*, citing *Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281.) Adhesion contracts are “standardized contracts drafted by a party of superior bargaining power and presented to the weaker party on a take-it-or-leave-it basis”. (*Id.*)

Plaintiff argues that the MAA failed to attach the applicable arbitration rules and required Plaintiff to independently search for them via a link. The failure to attach a copy of the applicable arbitration rules, by itself, does not render the agreement procedurally unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 691 [“there could be no surprise, as the arbitration rules referenced in the agreement were easily accessible to the parties – the AAA rules are available on the internet”.]) It contributes to surprise only if the rules are found to contain unexpected provisions that limit the scope of the plaintiff’s claims or otherwise affect the relief available. (*Baltazar*, 62 Cal.4th at 1246 [distinguishing cases such as *Trivedi v. Curexo Technology Corp.* (2010) 189 Cal.App.4th 387 where the plaintiff’s unconscionability claim depended in some manner on the arbitration rules]; *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470.) Nonetheless, Plaintiff acknowledges a link to the arbitration rules was provided. (Dec.Rodrigues, Ex. “A”.)

Plaintiff also argues that there was unequal bargaining power and she had no ability to negotiate the terms. However, the MAA provided Plaintiff for up to thirty days to **opt-out** of the MAA with no adverse impact on her employment status. (Dec.Rodrigues ¶ 8, Ex. “A”, p. 3, § 4.) Thus, it was not presented to her as a condition of employment or on a take-it-or-leave-it basis. Therefore, Plaintiff has not established any procedural unconscionability at all.

Plaintiff also addresses substantive unconscionability, which focuses on the terms of the agreement and whether those terms are so unduly harsh or unreasonably one-sided as to “shock the conscience.” (*Marin Storage & Trucking, Inc. v. Benco Contracting & Eng.* (2001) 89 Cal.App.4th 1042, 1055.) It should also be noted that “a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the

agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the MAA contains a high degree of substantive unconscionability because it contains terms demonstrating a lack of mutuality. “A lack of mutuality exists when an arbitration agreement expansively defines who is to be bound by the agreement on one side, but restrictively defines who is bound by it as to the other side.” (*Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312, 326.) In *Cook*, the Court noted that the agreement required Cook to arbitrate all claims against USC or any of its related entities but did not require those related entities to arbitrate their claims against Cook. (*Ibid.*) Plaintiff argues that here, as in *Cook*, the MAA “applies to a dispute that the *Company may have against you*, or that *you may have against*: (1) the Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company’s benefits plans or the plan’s sponsors, fiduciaries, administrators, affiliates, or agents; and (4) all successors and assigns of any of them. (Dec.Rodriguez ¶ 8, Ex. “A”). Essentially, Plaintiff argues that the MAA does not encompass a reciprocal obligation.³

The MAA contains some overbreadth because it requires Plaintiff to arbitrate claims against many non-parties but does not require them to arbitrate claims against her. However, the MAA is limited to claims relating to employment making it narrower and factually distinguishable from *Cook*. More importantly, even where there is some substantive unconscionability, some degree of procedural unconscionability is also required. Here, as discussed above, there is no procedural unconscionability. Thus, overall, the MAA is not unconscionable.

9.

CASE #	CASE NAME	HEARING NAME
CVME2602754	IN RE: VERONICA FONCECA	MOTION TO VACATE ORDER AND APPROVE FIRST AMENDED PETITION

Tentative Ruling: GRANTED.

10.

CASE #	CASE NAME	HEARING NAME
CVME2604565	O'DUFFY BROS. VS DUFFY	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: DENY

Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court will not consider probability of prevailing under prong 2.

On 2/27/2026, O'Duffy Bros, Inc. and James T. Duffy (“James” and collectively “Plaintiffs”) filed a complaint against Nicholas Duffy (“Nicholas”) and Duffy General Engineering (“Defendants”) asserting the following causes of action: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) usurpation of corporate opportunity; (4) fraud (intentional misrepresentation); (5) fraud (concealment); (6) misappropriation of trade secrets; (7)